



CHAPTER ix.

An Act to confirm a Provisional Order made by one of His Majesty's Principal Secretaries of State under the Marriages Validity (Provisional Orders) Acts 1905 and 1924. [15th June 1945.]

WHEREAS under the provisions of the Marriages Validity (Provisional Orders) Acts 1905 and 1924 one of His Majesty's Principal Secretaries of State has made a Provisional Order which needs confirmation by Parliament : 5 Edw. 7. c. 23.
14 & 15 Geo. 5. c. 20.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order of the Secretary of State which is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. schedule confirmed:

2. This Act may be cited as the Provisional Order (Marriages) Confirmation Act 1945. Short title.

SCHEDULE.

CHURCH OF SAINT MARY GRAVESEND ORDER.

Church of
Saint Mary
Gravesend
Order.

WHEREAS power is given to a Secretary of State by the Marriages Validity (Provisional Orders) Acts 1905 and 1924 in the case of marriages solemnized in England which appear to him to be invalid or of doubtful validity by reason of some informality to make a Provisional Order for the purpose of removing the invalidity or doubt and to include in such Order supplemental incidental and consequential provisions including provisions for relieving from liability ministers who have solemnized the marriages to which the Order relates :

And whereas the new Church of St. Mary in the parish of Gravesend in the county of Kent and the diocese of Rochester was duly consecrated for the performance of divine service on the first day of November one thousand nine hundred and thirty-eight but the Church was not licensed for the solemnization of marriages until the first day of March one thousand nine hundred and forty-four :

And whereas divers marriages had nevertheless been solemnized in the said Church of St. Mary before the first day of March one thousand nine hundred and forty-four and it is expedient in the circumstances aforesaid to remove all doubt touching the validity of such marriages and to make certain supplemental incidental and consequential provisions :

Now therefore I the Right Honourable Herbert Morrison one of His Majesty's Principal Secretaries of State in pursuance of the powers conferred on me by the said Marriages Validity (Provisional Orders) Acts 1905 and 1924 do hereby order that on and after the date of the Act of Parliament confirming this Order the following provisions shall have effect :—

- (1) All banns of matrimony and marriages published and solemnized between the last day of October one thousand nine hundred and thirty-eight and the first day of March one thousand nine hundred and forty-four in the Church of St. Mary in the parish of Gravesend in the county of Kent and the diocese of Rochester shall be deemed to have been as valid as if they had been published and solemnized in a church in which such banns might be published and marriages solemnized lawfully :
- (2) A minister who has solemnized any marriage referred to in the first paragraph of this Order shall not be liable to any proceedings for penalties whatsoever or to any ecclesiastical censure by reason of having solemnized such marriage :
- (3) The registers of the marriages so solemnized or copies of the registers shall be received in all courts as evidence of those marriages in the same manner as registers of marriages duly solemnized or copies thereof are by law receivable in evidence.

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